

An Act

ENROLLED HOUSE
BILL NO. 4294

By: Pae, Fugate, and Hefner of
the House

and

Stanley of the Senate

An Act relating to health insurance; directing fair coverage for individuals with epilepsy; disallowing termination of coverage for individuals diagnosed with epilepsy; providing coverage for devices or surgeries for epilepsy if certain criteria are met; providing for codification; and providing an effective date.

SUBJECT: Health insurance

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 6060.31 of Title 36, unless there is created a duplication in numbering, reads as follows:

A. All individual and group health insurance policies that provide medical and surgical benefits shall provide the same coverage and benefits to any individual who has been diagnosed with epilepsy as the policy would provide coverage and benefits to an individual who has not been diagnosed with epilepsy.

B. No insurer shall terminate coverage or refuse to renew an individual's health insurance coverage solely based upon the individual's diagnosis of epilepsy.

C. To reduce the risk of death from sudden unexpected death in epilepsy (SUDEP), all individual and group health insurance policies that provide medical and surgical benefits shall adopt medical policies that provide coverage for medically necessary neurostimulation devices if prescribed by a licensed physician who is actively treating the enrollee.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 5th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____